

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING THE SECRETARY OF STATE TO PUBLISH LIEN
5 INFORMATION RELATING TO AGRICULTURAL, FORESTRY, AND CONSTRUCTION EQUIPMENT; AND
6 REQUIRING THE SECRETARY OF STATE TO PUBLISH THE MAKE, MODEL, AND SERIAL NUMBER OF
7 THE EQUIPMENT AND OWNERSHIP INFORMATION."

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9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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11 NEW SECTION. **Section 1. Secretary of state to post lien information -- agriculture, forestry,**
12 **construction dealer lien information.** (1) For a lien filed with the secretary of state under this chapter on
13 equipment used in the agriculture, forestry, and construction industries, the secretary of state shall publish
14 information relating to the lien in a format that is accessible to the public, including publishing the information on
15 the secretary of state's website. The secretary of state shall, at a minimum, publish information relating to the
16 lien that identifies:

17 (a) the make, model, and serial number of the equipment; and

18 (b) the name of the producer, farm, ranch, or other entity and the lender who has a lien on the
19 equipment of the producer, farm, ranch, or other entity.

20 (2) This section applies to equipment used in the agriculture, forestry, and construction industries
21 and includes but is not limited to:

22 (a) implements of husbandry as defined in 61-1-101;

23 (b) construction equipment as defined in 61-10-102; and

24 (c) forestry equipment.

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26 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an
27 integral part of Title 71, chapter 3, part 1, and the provisions of Title 71, chapter 3, part 1, apply to [section 1].

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